

## FEDERAL MARITIME COMMISSION

ANCHOR SHIPPING CO.

Complainant,

v.

ALIANCA NAVEGACAO E LOGISTICA  
LTDA,

Respondent.

Docket No. 02-04

Served: May 21, 2013

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**BY THE COMMISSION:** Mario CORDERO, *Chairman*;  
Rebecca F. DYE, Richard A. LIDINSKY, Jr., Michael A.  
KHOURI, and William P. DOYLE, *Commissioners*.

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### **Order Denying Motion to Reconsider**

On December 10, 2012, Complainant, Anchor Shipping Company, submitted a pleading captioned: Motion to Reconsider Complainant's Motion to Reopen Case and Convene Dispute Resolution and Negotiated Rulemaking Proceedings, supplemented by a December 18, 2012 pleading captioned Supplement to Complainant's Motion to Reopen Case and Convene Dispute Resolution and Negotiated Rulemaking Proceedings (together "Motion"). Complainant requests that the Federal Maritime

Commission (“Commission”) review the Commission’s Secretary’s summary rejection of Complainant’s previous motion, submitted October 26, 2012, to reopen his case.

For the reasons set forth below, the Motion is denied.

### **DISCUSSION**

Complainant’s Motion was filed pursuant to Commission’s Rule 261. 46 CFR 502.261. That rule requires that such a petition be filed within thirty days of a final decision or order of the Commission and that it be limited to 25 pages. The rule also provides that such a petition will be subject to summary rejection unless it:

- 1) Specifies that there has been a change in material fact or in applicable law, which change has occurred after issuance of the decision or order;
- 2) Identifies a substantive error in material fact contained in the decision or order; or
- 3) Addresses a finding, conclusion or other matter upon which the party has not previously had the opportunity to comment or which was not addressed in the briefs or arguments of any party. Petitions which merely elaborate upon or repeat arguments made prior to the decision or order will not be received. A petition shall be verified if verification of the original pleadings is required and shall not operate as a stay of any rule or order of the Commission.

46 CFR 502.261(a).

The Motion has failed to meet any one of these standards. Pursuant to Rule 261, therefore, it has been summarily rejected. 46 CFR 502.261.

**CONCLUSION**

THEREFORE, IT IS ORDERED, That the Motion is DENIED.

By the Commission.

Karen V. Gregory  
Secretary